SUPREME COURT CASE NO. CRQ20-002

IN THE SUPREME COURT OF GUAM
HAGÅTÑA, GUAM

IN RE: REQUEST OF LOURDES A. LEON GUERRERO, I MAGA'HÅGAN GUÅHAN, RELATIVE TO THE POWER OF THE EXECUTIVE BRANCH TO ESTABLISH, MAINTAIN, AND OPERATE QUARANTINE FACILITIES IN GUAM AND TO PROMULGATE QUARANTINE AND SANITATION REGULATIONS FOR THE PROTECTION OF GUAM AGAINST THE IMPORTATION AND SPREAD OF DISEASE.

BRIEF OF INTERESTED PARTY I MINA'TRENTAI SAIS NA LIHESLATURAN GUÅHAN

ANA WON PAT-BORJA, ESQ.
Legislative Counsel
Guam Legislature Legal Bureau
163 W. Santo Papa
Hagåtña, Guam 96910
Telephone No.: (671) 477-2530
Attorney for Interested Party
36th Guam Legislature

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STATEMENT OF JURISDICTION

Title 7 GCA § 4104 grants this Court jurisdiction to issue declaratory relief to the Governor or the Legislature regarding their respective powers and duties. To pass jurisdictional muster, the Petitioner must satisfy three (3) separate and discrete requirements: (1) the issue raised must be a matter of great public importance; (2) the issue raised must be such that its resolution through the normal process of law is inappropriate as it would cause undue delay; and (3) the subject matter of the inquiry must be "appropriate" for section 4104 review. *In re Request of Gov. Carl T.C. Gutierrez for a Declaratory Judgment as to the Organicity of Guam Public Law 22-42*, 1996 Guam 4 ¶ 9. This Court has determined its jurisdiction in this matter is appropriate. See Order & Scheduling Order (December 31, 2020).

INTERESTED PARTY STATEMENT

In response to Governor's request to interpret 10 GCA §§ 19604 and 19605, this Court certified two (2) questions relative to whether quarantine orders may be challenged on constitutional grounds and whether a court may modify a quarantine

order issued by the Department of Public Health and Social Services.[1] In her Reply Brief, filed on March 2, 2021 at 11, the Governor asserted for the first time that 10 GCA §§ 19604 and 19605 are inorganic. At issue now is the Guam Legislature's power to enact the Islan Guåhan Emergency Health Powers Act as it relates the Governor's authority under the Organic Act of Guam, specifically 48 U.S.C.A. § 1421g(a). The Governor's assertions that the Legislature exceeded its power via the enactment of 10 GCA §§ 19604 and 19605 and the interpretation of the same will significantly impact the Guam Legislature's ability to enact quarantine measures. Based on the foregoing, the Legislature asserts that it is an appropriate interested party in this case.

STATEMENT OF ISSUES PRESENTED

The Governor of Guam seeks a declaration from this Court interpreting section 1421g(a) of the Organic Act of Guam, as it relates to sections 19604 and 19605 of the Islan Guåhan Emergency Health Powers Act (hereinafter "EHPA") (codified at 10 GCA §§ 19101 through 19809). The Guam Legislature limits the

[1] The Court specifically certified the following questions: 1) May quarantine orders be challenged on constitutional grounds? If yes, what level of scrutiny should be applied to the court's review, whether rational, intermediate, or strict?; and 2) May a court modify a quarantine order issued by DPHSS? If yes, under what circumstance may a court modify a quarantine order issued by DPHSS? If yes, does such modification impinge on the Governor's power and duties to quarantine and protect against the spread of disease and interfere with the operations of the Executive Branch? See Order and Scheduling Order, December 31, 2020.

scope of its argument in this case to the following questions: (1) Under the section 1421g(a) of the Organic Act of Guam, is the Legislature authorized to enact sections 19604 and 19605 of the Islan Guåhan Emergency Health Powers Act?; and (2) Do sections 19604 and 19605 of the EHPA impinge upon the Governor's section 1421g(a) authority over quarantine matters, and if so, is the enactment of said law justified by an overriding constitutional need?

STATEMENT OF THE CASE

This case was brought by the Governor through her Request for Declaratory Judgment, wherein she seeks an interpretation by this Court affirming 1421g(a) of the Organic Act as granting her sole authority over quarantine matters, not subject to legislative oversight and beyond judicial reach. The Legislature submits that this overbroad reading of section 1421g(a) is misplaced and misguided. The Legislature maintains that extending the Governor's interpretation of sections 19604 and 19605 (hereinafter "quarantine provisions") of the Islan Guåhan Emergency Health Powers Act as unlawful encroachments on her quarantine power in this case opens the door to invalidating the remaining provisions of the EHPA—and any and all laws—providing for public health services.

This case stems from the Governor's frustration with the number of successful "challenges" in the lower courts brought under 10 GCA §§ 19604 and

19605 to DPHSS' conditions of quarantine and isolation. In a time of uncertainty during the COVID-19 pandemic, the Governor puts at issue the extent of her emergency power with respect to quarantine in an effort to sidestep the underlying issues in cases brought before the Superior Court. In addition to her original questions, she now seeks to render the quarantine provisions inorganic and impair the Legislature's ability enact laws to protect the health, safety, and welfare of the people of Guam with respect to quarantine.

STATEMENT OF FACTS

On March 14, 2020, Governor Lourdes A. Leon Guerrero, I Maga'hågan Guåhan, declared a state of emergency to respond to novel coronavirus ("COVID19"), in Executive Order No. 2020-03 pursuant to 10 GCA § 19604 of the Islan Guåhan Emergency Health Powers Act. Exec. Order No. 2020-03, Mar. 14, 2020. From the outset of the public health emergency, the Governor issued multiple executive orders, requiring individuals to quarantine pursuant to sections 19604 and 19605 of the EHPA, while simultaneously requiring the administration of quarantine in accordance with applicable Department of Public Health and Social Services (hereinafter "DPHSS") Guidance.

On or about October 2020, under 10 GCA § 19605, certain individuals successfully obtained judicial relief from the Government's quarantine conditions

in the Superior Court of Guam. In response to the lower court's application of the law, on October 28, 2020, the Governor issued Executive Order No. 2020-38, which ordered the "expedient adoption and implementation of the COVID-19 Public Health Enforcement Regulations developed by DPHSS." On November 19, 2020, DPHSS promulgated the "Regulations Governing the Enforcement of Public Health Guidance Memoranda and Directives During the COVID-19 Public Health Emergency." 26 GARR § 428101 et seq.

In light of the continued varying outcomes in the lower courts, the Governor filed a Request for Declaratory Judgment on December 24, 2020 ("Request"). The Request contained questions seeking the Court's interpretation of her powers and duties and the court's role with respect to who controls the conditions of quarantine and isolation. On December 21, 2020, this Court, in part, granted the Governor's Request. On February 8, 2021, in response to the questions presented in the Governor's Request, DPHSS, and the Public Defender Service Corporation (hereinafter "PDSC") submitted their respective briefs in this case.

For the first time, in response to the PDSC's arguments laying out the statutory framework of quarantine provisions of the EHPA, the Governor asserted that the Legislature's enactment of 10 GCA §§ 19604 and 19605 is inorganic and void. See Petitioner's Reply Brief at 11. On March 9, 2021, the Court issued a Second Order & Scheduling Order, exercising its discretion to review the new

argument and invited the Legislature to respond. Upon receipt of the grant of the Legislature's request for an extension of time to file its brief, on March 22, 2021, the Legislature adopted Resolution 47-36 (LS), "Relative to authorizing I Liheslaturan Guåhan to be represented in Guam Supreme Court Case No. CRQ20-002 and assert the validity of the provisions of the Islan Guåhan Emergency Health Powers Act at issue, and ultimately, preserve the Legislature's power granted by the Organic Act to enact law necessary to protect the health, safety, and general well-being of the people of Guam."

SUMMARY OF ARGUMENT

Congress granted to the Legislature, under 48 U.S.C.A. § 1421g(a), the authority to enact laws relating to public health services and quarantine, and to the Governor the authority to implement and enforce quarantine measures subject to such laws. From the outset, the Governor has failed to overcome the presumption that 10 GCA §§ 19604 and 19605 are organic and consistent with the Guam Legislature's authority to enact legislation relative to quarantine. The plain meaning of phrase "subject to laws of Guam" in section 1421g(a) indicates that Governor's quarantine power is limited. Furthermore, the quarantine power, as it extends to the Legislature is consistent with the Organic Act and the Legislature's exercise of its inherent police power. Overall, the Governor has not sufficiently

articulated how sections 19604 and 19605 impinge on her authority when she has wide latitude during a public health emergency to implement and enforce quarantine policy generally, and has specifically exercised that power pursuant the Islan Guåhan Emergency Health Powers Act during the COVID-19 pandemic.

ARGUMENT

A. THE GOVERNOR ERRONEOUSLY ASSUMES HER AUTHORITY OVER QUARANTINE IS NOT SUBJECT TO LAW OR JUDICIAL REVIEW.

1. The Governor has not overcome the presumption that sections 19604 and 19605 are constitutional.

The Governor fails to demonstrate with specificity the basis for, or extent to which, her power to establish, maintain, and operate quarantine stations and to promulgate quarantine regulations is usurped by sections 19604 and 19605 of the EHPA. Rather, the Governor makes sweeping statements declaring said provisions inorganic—going so far as to characterize duly enacted law as "quarantine regulations"—without an analysis of the purported issues. See Petitioner's Reply Brief at 7. To be sure, the Governor bears the burden to show that the quarantine provisions are unconstitutional. See *In re Request of Governor Carl T.C. Gutierrez Relative to the Organicity and Constitutionality of Public Law 26-35*, 2002 Guam 1 ¶ 41 (hereinafter "*In re Request of Gutierrez*") ("[The Party] who alleges the unconstitutionality of an act bears the burden of proof . . . . [and] the validity of

acts is to be upheld if at all possible with all doubt resolved in favor of legality and unconstitutionality will be decreed only when no other reasonable alternative presents itself . . . .") (citations omitted).

The quarantine provisions of the EHPA, "must begin with the general rule that legislative enactments are presumed to be constitutional." *Id.* at ¶ 40. In asserting that the Legislature has exceeded its power in enacting sections 19604 and 19605, the Governor attempts to divorce her regulatory power over quarantine from the statutory power that necessarily precedes the former. "The Constitution's central mechanism of separation of powers depends largely upon common understanding of what activities are appropriate to legislatures, to executive, and to courts." *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 559-60 (1992).

2. The plain meaning of "subject to the laws of Guam" in section 1421g(a) limits the Governor's power over quarantine.

Section 1421g(a) of the Organic Act does not grant the Governor sole and absolute authority over quarantine matters; rather, it provides a limit on such power. Section 1421g(a) specifically provides,

> Subject to the laws of Guam, the Governor shall establish maintain, and operate public health services in Guam, including hospitals, dispensaries, and quarantine stations, at such places in Guam as may be necessary, and he shall promulgate quarantine and sanitary regulations for the protection of Guam against the importation and spread of disease.

48 U.S.C.A. § 1421g(a) (emphasis added).

The Governor disputes the Legislature's power to enact laws relative to quarantine to the extent "that it effectively guts the Governor's authority, enabling the Legislature to wholesale substitute its judgment for hers in the creation of quarantine regulations." See Petitioner's Reply Brief at 2. The Legislature maintains that quarantine authority under section 1421g(a) is not exclusive to the Governor as its plain language demonstrates that the Legislature may enact public health and quarantine laws to which the Executive must adhere in accomplishing her constitutional functions relative to the same.

The phrase "subject to the laws of Guam," as that term is used in section 1421g(a), must be interpreted according to its plain meaning. See *Pangelinan v. Gutierrez*, 2000 Guam 11 ¶ 23 ("In cases involving statutory construction, the plain language of the statute must be the starting point."); see also *Sumitomo Constr., Co. v. Gov't of Guam*, 2001 Guam 23 ¶ 17 ("It is a cardinal rule of statutory construction that courts must look first to the language of the statute itself.") (citation omitted). Under a plain meaning analysis, section 1421g(a) extends, subject to the laws of Guam, power to the Governor to execute such laws and promulgate regulations pertaining to public health and quarantine—not exclusive power over quarantine. The Governor characterizes "subject to the laws of Guam" as a "savings clause" in an attempt to wholly disregard the Legislature's

power and deny such language any meaningful weight. See Petitioner's Reply Brief at 2. Section 1421g(a), however, should be read to "give effect, if possible, to every clause and word" so that "no clause is rendered superfluous, void, or insignificant." *Duncan v. Walker*, 533 U.S. 167, 174 (2001) (internal quotation marks omitted).

Moreover, the remaining terms of section 1421g(a) expressly delineate the Governor's power over quarantine stations and the promulgation of quarantine regulations and therefore limits the scope of executive authority. The term "establish" means "[t]o settle, make, or fix firmly; to enact permanently" or "[t]o make or form; to bring about or into existence." BLACK'S LAW DICTIONARY (11th ed. 2019). "Maintain" is defined as "[t]o continue (something)"; "[t]o continue in possession of (property, etc.)" or "[t]o care for (property) for purposes of operational productivity or appearance; to engage in general repair and upkeep." BLACK'S LAW DICTIONARY (11th ed. 2019). The term "operate" means to "perform a function; exert power or influence." MERRIAM-WEBSTER.COM DICTIONARY, available at https://www.merriam-webster.com/dictionary/operate. The parameters of the Governor's power then can be defined as forming, engaging in the care and general repair of, and performing functions relative to quarantine stations and quarantine regulations. These functions are consistent with nature of

the executive branch's role in governance and power to execute and enforce laws, which by comparison highlight the legislative power to enact laws.

3. Congress granted the Legislature, under section 1421g(a), concurrent authority over public health services and quarantine policy.

The Governor (1) mischaracterizes sections 19604 and 19605 as "purported quarantine regulations," without providing the basis for such proclamation; and (2) asserts conclusively that said purported regulations impinge "on her ultimate authority to promulgate quarantine and sanitary regulations." See Petitioner's Reply Brief, at 7-8. Sections 19604 and 19605 of the EHPA, however, are duly enacted statutes and not quarantine regulations. See *In re Request of I Mina' Trentai Dos Na Liheslaturan Guåhan Relative to the Use of Funds From the Tax Refund Efficient Payment Trust Fund*, 2014 Guam 15 ¶ 52 (hereinafter "*In re Request of I Mina' Trentai Dos*") (explaining, "[w]hile the Legislature has the power to enact law, the administration and enforcement of that law is solely the province of the Governor.").

With respect to the extent of the Governor's power over quarantine under section 1421g(a), it is clear that such is not exclusive to the executive branch. *Bordallo v. Baldwin*, 624 F.2d 932 (9th Cir. 1980). In *Bordallo*, the court examined whether Public Law 14-91 (1977) was organic or an unlawful encroachment on the Governor's appointment power, when the Governor was given no discretion over

appointments to the Guam Memorial Hospital's ("the hospital") board because the law required him to select board members from those individuals designated by private organizations. *Id.* at 934. The court held that when the governor is specifically charged by section 1421g(a) with the responsibility for establishing, maintaining, and operating the hospital, the Legislature may not, "within the terms of the [Organic Act] reduce his function with respect to the governance of the hospital to the mere ministerial function of validating the appointments made by others to the hospital's governing body." *Id.* The relevant distinction between sections 19604 and 19605 and the public law at issue in *Bordallo* is that, here, the latter had the effect of eliminating all discretion over the Governor's appointment power under section 1422c(a) of the Organic Act. Similarly, the encroachment asserted by the Governor in this case by no measure usurps of all of her discretion over her quarantine authority. By contrast, the Legislature's enactment, within the field of quarantine matters, merely provides safeguards limited to individuals who go before the court and request for specific remedies based on the particular quarantine or isolation conditions they are actually subject to.[2]

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[2] The Legislature does not seek to put at issue separation of powers arguments not presented by the Petitioner. See *In re Request of Mina'Trentai Dos*, 2014 Guam 15, fn. 3 (court reserving judgment on whether statutes at issue interfere the Governor's powers of general supervision and control under § 1422 because neither the Governor nor any other party argued statutory conflict with said provision).

Turning to the Legislatures power pursuant to section 1421g(a), which is illuminated in *Bordallo*:

> the Legislature may, of course determine whether a hospital shall exist at all, where and how large it shall be, the size and qualifications for appointment to the governing body, and a wide variety of other matters establishing the laws of Guam 'subject to' which the Governor perform his function with respect to the hospital . . . .

Id. at 934-935 (emphasis added).

Applying this analysis of section 1421g(a) as it relates to quarantine stations and quarantine regulations, sections 19604 and 19605 are appropriately within the parameters set in *Bordallo*.

The Ninth Circuit analyzed the meaning of "subject to the laws of Guam" in a similar case involving the Department of Education's ("DOE") suspension and termination of a teacher in *Brown v. Civ. Serv. Comm'n*, 818 F.2d 706 (9th Cir. 1987). The issue on appeal in *Brown* was whether the district court's decision invalidating DOE's suspension of teachers but upholding the termination of that employee conflicts with the Governor's responsibility to establish a public school system under 48 U.S.C.A. § 1421(g)(b) of the Organic Act. *Brown* at 709. DOE argued that by omitting the phrase "subject to the laws of Guam" from section 1421g(b), Congress intended to grant the "Governor authority over the school system exclusive of any concurrent legislative authority." *Id.* at 709. The version of

section 1421g(b) of the Organic Act before the court in *Brown*, is nearly identical to section 1421g(a) at issue in this case. Section 1421(g)(b) provided:

> The Governor shall provide an adequate public education system of Guam, and to that end shall establish, maintain, and operate public schools at such places in Guam as may be necessary.[3]

Id. (emphasis added).

Rejecting DOE's argument, the court applied the clause "subject to the laws of Guam" contained within section 1421g(a) and applied it to section 1421g(b). *Brown* at 709. The court explained, "a more reasonable interpretation of the constitutional provision is that the first phrase of the first subsection was meant to apply equally to both the public health system and the public school system." *Id.* (emphasis added). Further, the court provided, "the legislative history does not indicate that Congress intended to give the Governor exclusive power over the school system."[4] *Id.* Accordingly, the clause "subject to the laws of Guam" applies equally to section 1421g(a), and indicates that Congress did not intend for the Governor to have exclusive power over the public health system, and more specifically, over quarantine.

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[3] Congress amended 48 U.S.C.A. § 1421g(b) in 1986 to require that the "Government" rather than the "Governor" of Guam provide an educational system. U.S. Public Law 99-396 (1986).

[4] The court in *Brown* cites directly to Secretary of Interior J.A. Krug's statements to support this proposition. See *Brown* at 709; see also S. Rep. 2109, 81st Cong. 2d Sess., reprinted in 1950 U.S. Code Cong. Ser. 2840, 2856.

a. The Legislature lawfully granted jurisdiction to the Superior Court over statutory claims brought under the EHPA.

Extending the analysis applied in *Bordallo* and *Brown* to section 1421g(a) governing quarantine, the Legislature validly exercised its authority to create a framework for quarantine procedures and provide jurisdiction over claims for relief from the same through the enactment of sections 19604 and 19605 of the EHPA. The legislative and executive powers contained in section 1421g(a) encompass matters of public health services and quarantine that necessarily overlap. See *In re Request of I Mina'Trentai Dos*, 2014 Guam 15 ¶ 38 ("We have recognized that the powers of the Legislature and the Governor often overlap, and that such issues must be addressed on a case-by-case basis."); see also *In re Request of Gutierrez*, 2002 Guam 1 ¶ 41.

The Legislature disputes the Governor's assertion that the quarantine provisions of the EHPA are unlawful delegations of section 1421g(a) power to the courts. Petitioner's Reply Brief at 10. The quarantine provisions of the EHPA, including the statutory forms of relief, are consistent with the Legislature's authority to vest in local courts jurisdiction over all causes as the laws of Guam provide. See 48 U.S.C.A. § 1424-1(d); accord *In re Request of Gutierrez* at ¶ 5 (in

construing the prior version of 48 U.S.C. § 1424-1(b)[5] relative to local court jurisdiction and whether it could review 7 GCA § 4104 cases, the court found "this section of the Organic Act gives the Legislature broad authority to define the jurisdiction of local courts."). The current version of section 1424-1(d) of the Organic Act of Guam provides in relevant part,

> [t]he Superior Court of Guam and all other local courts established by the laws of Guam shall have such original and appellate jurisdiction over all causes in Guam as the laws of Guam provide, except that such jurisdiction shall be subject to the exclusive or concurrent jurisdiction conferred on the District Court of Guam under section 1424 of this title.
>
> 48 U.S.C.A. § 1424-1(d).

Thus, the Legislature's enactment of the quarantine provisions of the EHPA pursuant to section 1421g(a) is supported by its discretion to vest in local courts the jurisdiction to grant relief from quarantine. Cf. *Brown* at 709 (finding separate provision, section 1422c(a), to support Legislature's concurrent section 1421g(b) authority over public education, otherwise "such broad interpretation . . . would

[5] *In re Request of Gutierrez* 2002 Guam 1 ¶ 5 ("Local Court Jurisdiction. The legislature may vest in the local courts jurisdiction over all causes in Guam over which any court established by the Constitution and laws of the United States does not have exclusive jurisdiction. Such jurisdiction shall be subject to the exclusive or concurrent jurisdiction conferred on the District Court of Guam by section 1424(b) of this title.").

entail reading the provision in a vacuum. The authority to establish merit system was clearly intended to be within the Legislature's province.").

b. The Legislature's authority to enact quarantine laws is consistent with its exercise of the Organic Act power and its inherent police power.

The Legislature properly exercised its power granted under the Organic Act of Guam to provide for the health, safety, and welfare of the people of Guam when it enacted the Islan Guåhan Emergency Health Powers Act (EHPA). See 48 U.S.C.A. § 1423(a) ("The legislative power and authority of Guam is vested in a legislature."); see also 48 U.S.C.A. § 1423a ("[t]he legislative power of Guam shall extend to all rightful subjects of legislation not inconsistent with the provisions of this chapter and the laws of the United States applicable to Guam."). The Governor's assumption that she has unfettered quarantine power is overstated to the extent that it disregards the inherent police power of the Legislature and the check on that power instituted by the "laws of Guam" which necessarily authorize legislative safeguards for quarantine. Cf. *Gayle v. Gov'r of Guam*, 414 F.Supp. 636, 638 (D. Guam 1976) (declaring "the exercise of inherent police powers of a state rests in its legislature." (citations omitted); see *Crowder v. Kitagawa*, 842 F.Supp. 1257 (1994), rev'd on other grounds, *Crowder v. Kitagawa*, 96 Cal. Daily Op. Serv. 2980 (9th Cir. 1996) (citing *Queenside Hills Realty Co., Inc. v. Saxl*, 328 U.S. 80, 82–83, (1946) ("The United States Supreme Court has held that protection

of health and safety is one of the traditional functions of the police power, and that courts should leave to legislatures the means by which it is implemented."); see also *Application of Halko*, 54 Cal. Rptr. 661, 663 (Ct. App. 1966) ("The preservation of the public health is universally conceded to be one of the duties devolving upon the state as a sovereignty, and whatever reasonably tends to preserve the public health is a subject upon which the Legislature, within its police power, may take action."). Taken together, the provisions of the Organic Act and the role of the Legislature support the proposition that under section 1421g(a), the Legislature may enact quarantine provisions, subject to which the Governor's shall perform her function with respect to quarantine. Cf. *Wade v. Taitano*, 2002 Guam 16 ¶ 7 ("[a]n agency cannot create rules, through its own interstitial declaration, that were not contemplated or authorized by the Legislature," the court can only uphold rules and regulations promulgated by the agency "which are consistent with the legislative scheme." (internal citations omitted).

B. SECTIONS 19604 AND 19605 DO NOT IMPINGE UPON THE GOVERNOR'S SECTION 1421g(a) AUTHORITY OVER QUARANTINE MATTERS.

Having established that the Legislature may enact quarantine laws pursuant to section 1421g(a) of the Organic Act and that the Governor must promulgate rules in accordance with such laws, the Legislature maintains that sections 19604

and 19605 do not impinge upon the Governor's quarantine power. Rather, the quarantine provisions of the EHPA provide the framework from which the executive may effectively establish, maintain, and operate quarantine stations and promulgate rules regarding the same, without effectively taking over the entire power over quarantined persons during a public health emergency.

In determining whether the quarantine provisions of the EHPA disrupt the proper balance between the coordinate branches, the proper inquiry focuses on the extent to which the law prevents the executive branch from accomplishing its constitutionally assigned functions. Such inquiry requires looking for facial violations that run afoul of the Governor's power. See *Camacho In re: Request of Governor Felix P. Camacho Relative to the Interpretation and Application of Sections 6 and 9 of the Organic Act of Guam*, 2004 Guam 2 at ¶ 39. Next, the Court determines: "(1) whether the statutory provision prevents the accomplishment of constitutional[6] functions; and (2) if so, whether the disruptive impact is justified by any overriding constitutional need. *People v. Perez*, 1999 Guam 2 at ¶ 17. If the statutory provisions in question do not prevent the Governor from accomplishing his constitutional functions, the Court need not consider part two of the test and no separation of powers concern exists. *Camacho*, 2004 Guam

[6] See *People v. Perez*, 1999 Guam 2, at ¶ 15 (citing *Bordallo v. Baldwin*, 624 F.2d 932, 934 (9th Cir. 1980) ("Until Guam creates its own Constitution, the Organic Act of Guam is the equivalent of Guam's Constitution.")).

at ¶ 52.

1. Sections 19604 and 19605 do not prevent the Governor from promulgating and implementing quarantine regulations.

It is still unclear as to what the Governor's specific separation of powers claims are, as she generally argues that "every aspect of 19604 and 19605 impinges on Petitioner's ultimate authority to promulgate quarantine regulations."[7] Petitioner's Reply Brief at 7-8. Along with sweeping arguments, the following conclusions are drawn, that sections 19604 and 19605 impinge on her ultimate authority to promulgate quarantine regulations by:

1. "delineating specific conditions and principles for the administration of quarantine";
2. "prescribing the procedures for implementing quarantine";
3. "delegating authority to the court to issue orders for supposed violations of the statutory conditions"; and

[7] Petitioner specifically provided, "Every aspect of Sections 19604 and 19605 – from delineating specific conditions and principles for the administration of quarantine, to prescribing the procedures for implementing quarantine, to delegating authority to the court to issue orders for supposed violations of the statutory conditions, and purportedly authorizing the court to fashion remedies that, at least according to the PDSC, allow the court itself to have a say in the promulgation of quarantine regulations – impinges on Petitioner's ultimate authority to promulgate quarantine regulations."

4. "authorizing the court to fashion remedies that . . . allow the court itself to have a say in the promulgation of quarantine regulations."

Petitioner's Reply Brief 7-8.

Assuming that the Governor is claiming that sections 19604 and 19605 prevent her from establishing, maintaining, and operating quarantine stations, the Legislature refers to *Bordallo* for guidance as to what those constitutional functions are at issue. As discussed *supra*, in *Bordallo*, the court provides insight as to what constitutional functions derive from the overarching responsibilities of "establish[ing[, maintain[ing], and operat[ing]" the hospital, which may be applied to quarantine stations and promulgation of quarantine regulations in a similar fashion. The Governor's section 1423g(a) authority concerns "governance" over quarantine matters, and the EHPA does not negate this power. See *Bordallo* at 934 ("the ultimate responsibility for the governance of the Hospital [is] in this Governor.").

In anticipation of a public health emergency, such as the COVID-19 pandemic, the Legislature adopted valid laws, which according to *Bordallo*, include "wide variety of other matters establishing the laws of Guam 'subject to' which the Governor shall perform [her] function" with respect to quarantine. See *id.* at 934.

The Legislature's enactment of conditions, principles, and procedures constitute a broad legal framework, under which the Governor has in fact, promulgated specific regulations to. See *In re Request of I Mina'trentai Dos*, 2014 Guam 15 ¶ 42 (legislative conditions violate the separation of powers doctrine where "they dictate the entire staffing structure of the executive branch or the exact terms of a contract."); see *In re Request of Gutierrez*, 2002 Guam 1 ¶ 51 (agreeing that a provision dictating when to terminate the current lease, mandating procurement of a new lease, including pre-requisite specifications, such as square footage, and pre-approval of a lease entered into by the Attorney General, was an unconstitutional encroachment on the executive's power to determine the terms of its contracts.).

From the beginning of the COVID-19 pandemic, the Governor has not been prevented from accomplishing her constitutional functions. This is exemplified by her issuance of Executive Order No. 2020-04, wherein she utilizes the very provisions of the EHPA she now claims violate of the separation of powers doctrine:

> Any individual who enters into Guam without the proper documentation shall be quarantined pursuant to this Section and Sections 19604 and 19605 of Article 6, Chapter 19 of Title 10, Guam Code Annotated.

Exec. Order No. 2020-04, Mar. 16, 2020 at ¶ 6 (emphasis added). In fact, in Executive Order No. 2020-16, the Governor demonstrates how both branches can exercise their respective authorities by explicitly mandating that quarantine be administered in conjunction with sections 19604 and 19605 and DPHSS Guidance:

> Any individual who enters into Guam without the proper documentation shall be quarantined pursuant to this Section and Sections 19604 and 19605 of Article 6, Chapter 19, Title 10, Guam Code Annotated. Such quarantine will be administered in accordance with applicable Public Health Guidance, which shall include appropriate protocols for determining home quarantine for current, intended and returning Guam residents.

Executive Order No. 2020-16 at ¶ 2.d. (emphasis added). This is apparent throughout the COVID-19 public health emergency in the following executive orders concerning quarantine:

- Exec. Order No. 2020-04, Mar. 16, 2020 attached as Exhibit A;
- Exec. Order No. 2020-11, Apr. 30, 2020, attached as Exhibit B;
- Exec. Order No. 2020-16, May 28, 2020, attached as Exhibit C;
- Exec. Order No. 2020-20, Jun. 5, 2020, attached as Exhibit D;
- Exec. Order No. 2020-22, Jun. 29, 2020, attached as Exhibit E;
- Exec. Order No. 2020-25, Jul. 20, 2020, attached as Exhibit F;
- Exec. Order No. 2020-27, Aug. 14, 2020, attached as Exhibit G;
- Exec. Order No. 2020-28, Aug. 21, 2020, attached as Exhibit H;

- Exec. Order No. 2020-29, Aug. 27, 2020, attached as Exhibit I; and
- Exec. Order No. 2020-38, Oct. 28, 2020, attached as Exhibit J.

Most notably, on October 28, 2020, in Executive Order 2020-38, the Governor mandated the "expedient adoption and implementation of the COVID-19 Public Health Enforcement Regulations to be developed by DPHSS." Exhibit J. The "Regulations Governing the Enforcement of Public Health Guidance Memoranda and Directives During the COVID-19 Public Health Emergency" were not promulgated until November 19, 2020—after individuals began seeking relief. 26 GARR §§ 428101 et seq. Moreover, there are various instances in the EHPA of rulemaking authority, which give the Governor wide latitude to manage public health emergencies and quarantine. See generally 10 GCA §§ 19104(l), 19604, 19605, and 19802 (providing that the public health authority, who is authorized to isolate and quarantine individuals, is appointed or determined by the Governor, and authorizing the public health authority to promulgate rules and regulations under the Chapter).

The Governor further argues that sections 19604 and 19605 allow a court's order to supplant DPHSS quarantine policy, which results in the provisions being "in direct and irreconcilable conflict with the relevant Organic Act provisions with respect to quarantine authority. See Petitioner's Reply Brief at 4. 10 GCA §§ 19604 and 19605 do not grant the Superior Court authority to "modify a

quarantine order issued by DPHSS," nor do said provisions grant the court the ability to, in effect, make quarantine policy. See Second Order and Scheduling Order (Mar. 9, 2021). The court, in determining relief under the EHPA, must consider the application or request brought by the "individual or groups of individuals . . . quarantined"—not determine and order relief that subsequently applies to all quarantined individuals irrespective of the evolving circumstances of a public health emergency. See 10 GCA § 19605(c)(1) and (c)(2).

For example, section 19605(c)(2) allows for a quarantined person to request for release and put forth evidence regarding whether or not she—and she alone—poses a substantial risk of transmitting COVID-19. The court may have exceeded its authority in this manner, in part, when it ordered that, ("Asymptomatic persons who refuse to test must be afforded a home assessment and transferred home no later than day 10, when the evidence shows they have little to no infectiousness"). See *Ikei et. al v. Dep't of Pub. Health and Soc. Srvcs.*, Case No. SP0138-20 at 27 (Super. Ct. Oct. 27, 2020).

The Governor and the PDSC dispute the extent to which, in various instances, the Superior Court may have misapplied the standards in determining whether DPHSS was quarantining individuals in accordance with the conditions included in 10 GCA § 19604(b)(1)-(8), and in so doing, impacted the Governor's quarantine policy. The Legislature does not take a position as to the appropriate

standard that applies in determinations for relief under the EHPA or whether the court misapplied the law. There is a difference between precedent and policy. Such judicial determinations for relief, which the Governor and PDSC debate at length, has no bearing on the organicity of the quarantine provisions of the EHPA. The deficiency may lie in the application of the law—not the law in and of itself.

In terms of statutory relief—separate sections provided under 10 GCA § 19605(c)(1) and 19605(c)(2)—it is for the appellate court to review whether or not the lower court applied the appropriate standard in finding Petitioner was entitled to release or remedies for breach of conditions. Cf. *Port Auth. of Guam v. Civil Serv. Comm'n (Javelosa)*, 2018 Guam 9 (discussing the application of the appropriate standard of review).

2. Sections 19604 and 19605 are justified by the overriding constitutional need to balance individual civil liberties and public health.

Even if, through the enactment of the quarantine provisions of the EHPA, the Governor is prevented from accomplishing her duties under section 1421g(a), the law must stand because there is an overriding constitutional need for the Legislature to balance individual civil liberties with public health, which is evident in the legislative intent of the Act.[8] The Islan Guåhan Emergency Health Powers

[8] 48 U.S.C.A. § 1421b(e) provides, "No person shall be deprived of life, liberty, or property without due process of law."

Act was introduced as Bill No. 360 (COR) ("Bill") and signed into law as Public Law 26-173 on January 5, 2003. At the time of the Bill's consideration, Guam had already been impacted by the second measles outbreak within a decade of the first measles epidemic on the island. See Statement of Sen. Eddie Calvo, I Mina'bente Sais na Liheslaturan Guåhan, Legislative Daily Journal, 2nd Sess., 26-27 Dec. 2002, 1, attached as Exhibit K.

In his opening statement on the Bill, the sponsor of the legislation, then-Senator Eddie Calvo, indicated the need for Guam to improve early detection and prevention of mass communicable diseases given our unique location and tourist industry. See *id.* at 1-2 Exhibit K. With regard to emergency powers of the EHPA authorizing the separation of affected individuals from the population at large to interrupt disease transmission, Senator Calvo reiterated that "Guam's ability to respond to public health emergencies must respect the dignity and the rights of individuals." *Id.* Further, the EHPA "provides[,] in the event of the exercise of emergency powers[,] the civil rights liberties and needs of infected or exposed persons that they will be protected to the fullest extent possible consistent with also the primary goal of controlling the serious health threats." *Id.* The Legislature's intent to extend individuals statutory rights to relief from quarantine through the judicial process was supported during debate on the Bill, at which time one (1)

Member other than the Sponsor spoke on the issue of quarantine. Then-Senator Lourdes A. Leon Guerrero, in support of the Bill, stated,

> [the Bill] I think protects the individuals who are isolated or quarantine[d] and [] feel that their rights have been violated, because sometimes in emergency situations panic can occur and you maybe . . . come into situations where you may just be isolating and quarantining people maybe unnecessarily[.] [S]o it does have provisions in here that protect the rights of those individuals.

See Statement of Sen. Leon Guerrero, I Mina'bente Sais na Liheslaturan Guåhan, Legislative Daily Journal, 2nd Sess., 26-27 Dec. 2002, 3, Exhibit K. Through legislative history, and in the text itself, the EHPA is the framework to ensure that the Government take a coordinated and comprehensive approach to planning and responding to public health emergencies, and further demonstrates a balance of power between the branches—not the concentration of power in any singular authority. The legislative intent of the EHPA further illuminates the significant state interest in providing for the public health of people of Guam: there is a "health, moral, social and ethical obligation for the government to responsibly abate and mitigate the spread of catastrophic communicable diseases within Guam." Islan Guåhan Emergency Health Powers Act, Pub. L. No. 26-173, (2003) (codified at 10 GCA Chapter 19). To that end, while much of the EHPA was crafted to give the Governor and public health officials specific emergency powers with regard to expenditures, suspension of rules, testing, treatment, and use of

property to prevent disease transmission, the Legislature recognized such powers must respect civil liberties. *Id.* This balance comports with the separation of powers doctrine, which exists to "prevent[ ] the abuses that can flow from centralization of power." *In re Request of Gutierrez*, 2002 Guam 1 ¶ 33 (internal quotation marks and citations omitted); see also *id.* ("The concentration of the separately delineated powers in the hands of one branch 'may justly be pronounced the very definition of tyranny.'").

CONCLUSION

The Islan Guåhan Emergency Health Powers Act is critical policy, consistent with the Organic Act of Guam. The Legislature respectfully requests that this Court recognize the Legislature's intent to protect the health, safety, and welfare of the people of Guam during public health emergencies, and find that 10 GCA §§ 19604 and 19605 are valid exercises of the Legislature's authority that do not impinge on the Governor's power.

Respectfully submitted this 6th day of April, 2021.

Legislative Counsel
Guam Legislature Legal Bureau
By: /s/ ANA WON PAT-BORJA, ESQ.
Attorney for Interested Party
36th Guam Legislature

CERTIFICATE REQUIRED BY RULE 13(j)

The undersigned, counsel of record for Interested Party I Mina'trentai Sais Na Liheslaturan Guåhan, hereby certifies that to the best of her knowledge, none of the Justices of this Court have presided over any portion of the instant case or any related proceeding in the court below and none of the Justices have served as counsel of record or have provided legal advice to any party in the proceeding.

Dated this 6th day of April, 2021.

Legislative Counsel
Guam Legislature Legal Bureau
By: /s/ ANA WON PAT-BORJA, ESQ.
Attorney for Interested Party
36th Guam Legislature

CERTIFICATE AS TO INTERESTED PARTIES

The undersigned, counsel of record for Interested Party I Mina'trentai Sais Na Liheslaturan Guåhan, hereby certifies that there are no known interested parties other than those participating in this case.

Dated this 6th day of April, 2021.

Legislative Counsel
Guam Legislature Legal Bureau
By: /s/ ANA WON PAT-BORJA, ESQ.
Attorney for Interested Party
36th Guam Legislature

STATEMENT OF RELATED CASES

The undersigned, counsel of record for Interested Party I Mina'trentai Sais Na Liheslaturan Guåhan, hereby certifies that there are no known related cases other than this case.

Dated this 6th day of April, 2021.

Legislative Counsel
Guam Legislature Legal Bureau
By: /s/ ANA WON PAT-BORJA, ESQ.
Attorney for Interested Party
36th Guam Legislature

CERTIFICATE OF COMPLIANCE

Pursuant to the GRAP 16(a)(7)(B) and 16(a)(7)(B)(iii) the undersigned counsel hereby certifies that the Brief of Interested Party I Mina'trentai Sais Na Liheslaturan Guåhan is proportionately spaced, has a typeface of 14 points and contains 6,572 words, excluding parts of the brief otherwise exempted from said Rule.

Dated this 6th day of April, 2021.

Legislative Counsel
Guam Legislature Legal Bureau
By: /s/ ANA WON PAT-BORJA, ESQ.
Attorney for Interested Party
36th Guam Legislature

CERTIFICATE OF SERVICE

I, ANA WON PAT-BORJA, do hereby certify that on April 6, 2021, I caused or will cause to be filed, via the Supreme Court of Guam's e-file service, the Brief of Interested Party I Liheslaturan Guåhan for the counsels of record:

SOPHIA SANTOS DIAZ
LESLIE A. TRAVIS
OFFICE OF THE GOVERNOR
Ricardo J. Bordallo Governor's Complex
Adelup, Guam 96910
Attorneys for Petitioner Lourdes A. Leon Guerrero Governor of Guam

OFFICE OF THE ATTORNEY GENERAL OF GUAM
Government of Guam
590 S. Marine Corps. Drive
Tamuning, Guam 96913
Attorneys for the Department of Public Health and Social Services

PUBLIC DEFENDER SERVICE CORPORATION
Government of Guam
779 Route 4
Sinajana, Guam 96910
Attorneys for Respondents, Incoming Travelers Subject to Quarantine

Dated this 6th day of April, 2021.

Legislative Counsel
Guam Legislature Legal Bureau
By: /s/ ANA WON PAT-BORJA, ESQ.
Attorney for Interested Party
36th Guam Legislature